Questions to Ask About Dad's Legal Documents, Sorted by Who Can Answer

Fifteen questions, grouped by the person each one belongs to, with room to write what they say.

Nothing is pressing, so take these one conversation at a time. Bring the questions written down, ask them as they are, and write the answer under each one.

This guide doesn't answer the questions and doesn't say which matters most. That depends on Dad's papers and on your state, and the people below are the ones who can say.

Dad

These are his papers and his decisions. Ask when it suits him, and write down what he says in his own words.

1. Which legal papers have you signed over the years, as far as you remember: a will, a trust, a power of attorney, a healthcare directive?

2. Where do you keep the signed papers, and does anyone else hold a copy?

3. Who do your papers name to make financial decisions, and who to make healthcare decisions?

4. Has anything changed in the family since you signed them that you'd want an attorney to know about?

5. Which of us would you like to know where these papers are kept?

Your Medicaid planner

The person who helps your family take stock of the documents and gather the questions for an attorney's review. Legal advice and legal documents belong to an elder law attorney.

1. Do we need an elder law or Medicaid planning attorney?

2. Here is our list of Dad's documents and the ones we couldn't find. What would you add before an attorney sees it?

3. Which of our questions belong to an elder law attorney, and which can you help us with?

An elder law attorney

The person for legal advice, and for any change to a document or to how something is owned.

1. Do Dad's existing powers of attorney remain appropriate?

2. Do his documents contain authority that may be important for future long-term-care planning?

3. Here are the papers we couldn't find or aren't sure exist. Is anything missing or outdated?

4. If Dad has a trust: here it is on our list. Would you review it for potential Medicaid implications?

5. Could a trust or another legal strategy help?

6. How could transferring property or changing ownership affect Medicaid eligibility?

7. Is there anything about how Dad's home or other property is owned that you'd want to look at?

What this guide doesn't do

It doesn't answer these questions or tell you which one matters most. The answers depend on what Dad's papers say and on the rules in your state, and they come from the people above. Nothing here is legal, financial or tax advice.

Ready for the next step?

You have your questions, and you know who each one belongs to. The planning interview asks about your family's situation as a whole, so the answers have somewhere to go, and gives you a free planning report you can bring to your Medicaid planner, to an elder law attorney, or to any conversation about paying for care.

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